

Ram Charittar Upadhyay v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 March 2018 · WRIT - C No. 8168 of 2018 · **Writ dismissed; petitioner left to Clause 6.5 bill-accuracy remedy.**

HEADNOTE

A writ challenging the correctness and accuracy of an electricity consumption bill is not entertainable. The consumer has a statutory alternative remedy of approaching the competent authority under Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Charittar Upadhyay filed Writ-C No. 8168 of 2018 in the Allahabad High Court challenging the correctness and accuracy of a bill for consumption of electrical energy. The State of Uttar Pradesh and four others were arrayed as respondents; counsel for respondents 3 to 5 appeared. The Division Bench heard the matter on 5 March 2018. The consumer invoked writ jurisdiction rather than the Supply Code machinery for billing disputes.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill accuracy — alternative remedy

HOLDING

A writ petition challenging the correctness and accuracy of a bill for consumption of electrical energy is not liable to be entertained, because Clause 6.5 of the Electricity Supply Code, 2005 gives the consumer a statutory alternative remedy of approaching the competent authority in a dispute over accuracy of the bill; the petition was dismissed, leaving it open to the petitioner to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging the correctness and accuracy of an electricity consumption bill is not entertainable. The consumer has a statutory alternative remedy of approaching the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND ACCURACY OF THE IMPUGNED ELECTRICITY BILL

Writ not entertained on the alternative-remedy bar; merits of the bill left open for Clause 6.5. ¶ 1